

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

Purchased:

-----X
FELIX OLIVO,

Plaintiff,

-against-

Plaintiff designates

Bronx County as the place of trial

The basis of the venue is where the
tort arose.

CITY OF NEW YORK, individually and in their official
capacities as New York City police officers, FABIAN
NEMBHARD, HECTOR LOPEZ and JOHN or JANE DOE
1-10,

SUMMONS

Defendants.
-----X

TO THE ABOVE-NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED, to answer the complaint in this action and to serve
a copy of your answer, or if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons,
exclusive of the day of service (or within 30 days after the service is complete if this summons is
not personally delivered to you within the State of New York); and in case of your failure to
appear or answer, judgment will be taken against you by default for the relief demanded in the
complaint.

Dated: Bayside, New York
June 10, 2019



SIM & DEPAOLA, LLP
By: Samuel DePaola, Esq.
Attorneys for Plaintiff(s)
42-40 Bell Boulevard Suite 201
Bayside, New York 11361
(718) 281-0400

TO:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street
New York, New York 10007

**P.O. HECTOR LOPEZ OF THE 46 PCT.
SHIELD #18353, TAX ID #958829**

2120 Ryer Avenue
Bronx, New York 10457

**P.O. FABIAN NEMBARD OF THE 46 PCT.
SHIELD #10675, TAX ID #955250**

2120 Ryer Avenue
Bronx, New York 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X Index No.:
FELIX OLIVO,

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, individually and in their official
capacities as New York City police officers, FABIAN
NEMBARD, HECTOR LOPEZ and JOHN or JANE DOE
1-10,Defendants.
-----X

Plaintiff, Felix Olivo, by his attorneys, Sim & DePaola, LLP, for his complaint against
the above Defendants, alleges as follows:

1. The claim arises from a September 24, 2017 incident in which defendants, acting under color of state law, unlawfully arrested and detained Felix Olivo at approximately 8:00 P.M. in the vicinity of Anthony Avenue and East Burnside Avenue, County of the Bronx, State of New York. Felix Olivo was subsequently charged with Criminal Possession of a Controlled Substance in the Third Degree and other related charges. As a result, Mr. Olivo was deprived of his liberty and suffered physical and psychological injuries. Mr. Olivo was wrongfully incarcerated over the course of twenty-eight (28) hours. He was maliciously prosecuted, until the dismissal of all charges on March 29, 2018, by the Hon. T. Collins of the Bronx County Criminal Court.
2. Plaintiff seeks monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

3. Plaintiff Felix Olivo ("Mr. Olivo") resides at 833 Summer Street Apt. 2B Stamford, CT 06901
4. The Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York.
5. At all times relevant hereto, Defendant City, acting through the New York City Police Department (or "NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.
6. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
7. Defendant Police Officer Fabian Nembhard ("Nembhard") was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Nembhard was, at all times relevant herein, a Police Officer under Shield #10675, Tax ID No. 955250 at the 46th Precinct, located at 2120 Ryer Ave, The Bronx, NY 10457. Defendant Nembhard is being sued in his individual and official capacities.
8. Defendant Police Officer Hector Lopez ("Lopez") was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant Lopez was, at all times

relevant herein, a Police Officer under Shield #18353, Tax Reg. No.958829 in the 46th Precinct, located at 2120 Ryer Ave, The Bronx, NY 10457. Defendant Lopez is being sued in his individual and official capacities.

9. At all times relevant Defendants John or Jane Doe 1-10 were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiff does not know the true names and/or tax registry numbers of Defendants John or Jane Doe 1-10, but such knowledge is believed to in possession of the defendants.
10. At all times relevant herein, Defendants John or Jane Doe 1-10 were acting as agents, servants and employees of the City of New York, the NYPD. Defendants John or Jane Doe 1-10 are being sued in their individual and official capacities.
11. At all times here mentioned, Defendants were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.
12. Within 90 days of accrual dates for these claims, Plaintiff timely filed a written notice of claim with the New York City Office of the Comptroller.
13. Over 30 days have elapsed since the filing of those notices, and this matter has not been settled or otherwise disposed of.
14. Plaintiff has complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
15. This action has been commenced within one year and ninety days from the relevant accrual dates.

FACTUAL CHARGES

16. On September 24, 2017 at approximately 8:00 P.M., Mr. Olivo was inside of Axel Rivera's vehicle in the vicinity of the corner of Anthony Avenue and East Burnside Avenue, County of Bronx, State of New York.
17. On said date, time and location, Mr. Olivo was a passenger in said vehicle seated in the front passenger seat.
18. On said date, time and location, Axel Rivera was driving said vehicle and was obeying all traffic laws.
19. On said date, time and location, Defendants, including Lopez and Nembhard, unlawfully stopped the said vehicle without any probable cause or reasonable suspicion to do so, as no plaintiff's vehicle was not in violation of any laws or local ordinances.
20. Defendants, including Lopez and Nembhard, asked for Mr. Rivera's driver's license and registration.
21. Axel Rivera complied and provided defendants with said documentation.
22. Defendants, including Lopez and Nembhard, then walked to their patrol vehicle to verify the driver's documentation.
23. Defendants, including Nembhard and Defendant Lopez, then radioed for back-up while they were checking the driver's documentation.
24. Then Defendants, including Lopez and Nembhard, unlawfully commanded all occupants of said vehicle, including Mr. Olivo, to exit the vehicle without probable cause or other justification for doing so.
25. Defendants, including Lopez and Nembhard, then illegally searched all the occupants of the vehicle, including Mr. Olivo, even though there was no probable cause to do so, as there was no indicia of criminal activity present.

26. Mr. Olivo did not commit any crimes or violate any law and was simply sitting in the passenger seat of the vehicle with his seat belt on.
27. Defendants, including Lopez and Nembhard, then illegally searched said vehicle without the consent of the driver Axel Rivera, or any other legal right to do so.
28. Defendant Nembhard then alleged to have found a backpack in the rear passenger-side floor of the said vehicle and alleged that it contained cocaine and marihuana.
29. Defendants, including Lopez and Nembhard, questioned the occupants of the vehicle about the alleged contraband without reading them their Miranda rights.
30. Defendants, including Lopez and Nembhard, threatened to arrest all of the occupants if no one came forward to claim ownership of the alleged contraband.
31. One of the occupants, Andrew Caicedo, immediately admitted to his ownership of the backpack and the alleged contraband allegedly recovered within.
32. Although there was no probable cause to search and seize the vehicle and occupants in this incident, any presumption of Mr. Olivo being in criminal possession of said alleged contraband was rebutted by the individual who claimed ownership of the backpack and contraband.
33. Defendants, including Lopez and Nembhard, continued to arrest all occupants without any probable cause in a blatant effort to exert pressure on defendants' true suspect and while being fully aware of Plaintiff's innocence.
34. Defendant Lopez was Mr. Olivo's arresting officer under arrest No. B17648630.
35. Defendants, including Lopez and Nembhard, falsely arrested Plaintiff claiming he was in criminal possession of marijuana and cocaine that was allegedly found in said vehicle.
36. Defendants, including Lopez and Nembhard, were fully aware that no contraband was in Mr. Olivo's possession, but knowingly and intentionally chose to state contraband was in Mr. Olivo's possession to justify and excuse an otherwise invalid arrest.

37. Mr. Olivo was never in actual, constructive or statutory possession of any contraband, as the backpack belonged to Andres Caicedo, who immediately claimed ownership, and was allegedly recovered from the rear, passenger-side floor of said vehicle, completely out of plaintiff's reach or dominion and control.
38. Mr. Olivo had multiple assaults and batteries committed to his person, including but not limited to, being placed in handcuffs too tightly.
39. Mr. Olivo was illegally searched at the police precinct.
40. Mr. Olivo was sent to central bookings for a crime he did not commit.
41. Mr. Olivo did not commit any crimes or violations of the law.
42. Defendants, including Lopez and Nembhard, intentionally provided said false information to the Bronx County District Attorney's Office, so that a criminal prosecution would be initiated against Mr. Olivo, namely that contraband was in Mr. Olivo's possession.
43. Defendant Lopez signed his criminal court complaint under Docket No. 2017BX037469, knowingly and falsely accusing Mr. Olivo of Criminal Possession of a Controlled Substance and other related charges, all of which Lopez knew to be untrue.
44. Mr. Olivo was arraigned and formally charged with two (2) count of Criminal Possession of a Controlled Substance, one (1) count of Criminal Possession of a Controlled Substance in the seventh degree, one (1) count of Criminally Using Drug Paraphernalia and one (1) count of Unlawful Possession of Marijuana.
45. At no point did Defendants, including Lopez and Nembhard, ever observe Mr. Olivo commit any crime or offense.
46. At no point were the defendants, including Lopez and Nembhard, ever told by any witnesses that Mr. Olivo committed any crime or violation of the law.

47. Defendants, including Lopez and Nembhard, had no probable cause or reasonable suspicion to arrest, detain or stop Mr. Olivo.
48. Defendants, including Lopez and Nembhard, never possessed probable cause to believe a prosecution would succeed against Plaintiff, or that Plaintiff was guilty of any crime.
49. While Plaintiff was unlawfully detained, Defendants, including Lopez and Nembhard, acting with malice, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiff prosecuted for Criminal Possession of a Controlled Substance and other related charges.
50. Defendants never possessed a legally issued warrant for plaintiff's arrest.
51. Defendants, including Lopez and Nembhard, intentionally, knowingly and falsely made said allegations to conceal their otherwise illegal, tortious and sinister acts, namely stopping and searching a vehicle illegally without a search warrant, probable cause or reasonable suspicion, and arresting multiple individuals without probable cause, due to no contraband being observed in plain view.
52. Defendants, including Lopez and Nembhard, suppressed evidence and engaged in conduct undertaken in bad faith.
53. Defendants have displayed a pattern and practice of falsely alleging contraband to be in plain view to justify otherwise unwarranted arrests.
54. Defendants have displayed a pattern and practice of falsely arresting individuals present inside of vehicle where no contraband is observed in plain view and where the arrestees do not own the vehicle.
55. Plaintiff was wrongfully incarcerated for approximately two (2) days or approximately (28) hours, until he was released on or about September 26, 2017.

56. Mr. Olivo was forced to return to court approximately eight (8) times to fight the false charges levied against him, until all charges were favorably terminated and dismissed on March 29, 2018.
57. During all of the events described, the Defendants, including Lopez and Nembhard, acted maliciously and with intent to injure Plaintiff.
58. At all times relevant hereto, Defendants, including Lopez and Nembhard, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiff without probable cause.
59. At all times relevant hereto, Defendants, including Lopez and Nembhard, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiff's criminal prosecution.
60. As a direct and proximate result of the acts of the defendants, including Lopez and Nembhard, Plaintiff suffered the following injuries and damages: violations of his rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.
61. Mr. Olivo was released after his arraignment on September 26, 2017, on his own recognizance.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

62. The above paragraphs are here incorporated by reference as though fully set forth.

63. Defendants subjected Plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
64. Plaintiff was conscious of his confinement.
65. Plaintiff did not consent to his confinement.
66. Plaintiff's arrest and false imprisonment was not otherwise privileged.
67. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
68. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
69. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

70. The above paragraphs are here incorporated by reference as though fully set forth.
71. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff.
72. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.
73. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff.
74. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

75. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

THIRD CAUSE OF ACTION

Assault and Battery Under
New York State Law

76. The above paragraphs are here incorporated by reference as though fully set forth.
77. Defendants made plaintiff fear for his physical well-being and safety and placed his in apprehension of immediate harmful and/or offensive touching.
78. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered him without his consent.
79. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
80. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
81. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FOURTH CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983 Against Individual Defendants

82. The above paragraphs are here incorporated by reference as though fully set forth.
83. The Defendants violated Plaintiff's rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.
84. Defendants engaged in and subjected Plaintiff to immediate harmful and/or offensive touching and battered him without his consent.

85. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
86. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

87. The above paragraphs are here incorporated by reference as though fully set forth.
88. Defendants initiated the prosecution against Plaintiff.
89. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
90. Defendants acted with malice.
91. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.
92. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
93. As a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.
94. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

95. The above paragraphs are here incorporated by reference as though fully set forth.

96. Defendants initiated the prosecution against Plaintiff.
97. Defendants lacked probable cause to believe Plaintiff was guilty or that a prosecution would succeed.
98. Defendants acted with malice.
99. The prosecution was terminated in Plaintiff's favor when all criminal charges were dismissed and sealed.
100. Accordingly, Defendants violated Plaintiff's Fourth Amendment rights.
101. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
102. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

SEVENTH CAUSE OF ACTION

Malicious Abuse of Process Under
New York State Law

103. The above paragraphs are here incorporated by reference as though fully set forth.
104. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
105. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
106. Defendants intended to inflict substantial harm upon Plaintiff.
107. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
108. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

109. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
110. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

EIGHTH CAUSE OF ACTION

Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

111. The above paragraphs are here incorporated by reference as though fully set forth.
112. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.
113. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiff, especially with the absence of any cognizable probable cause.
114. Defendants intended to inflict substantial harm upon Plaintiff.
115. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiff's criminal prosecution.
116. Defendants' actions deprived Plaintiff of his right to free from illegal searches and seizures, as well as his right not to be deprived of his liberty without due process of law.
117. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
118. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

NINTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

119. The above paragraphs are here incorporated by reference as though fully set forth.
120. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
121. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
122. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
123. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TENTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

124. The above paragraphs are here incorporated by reference as though fully set forth.
125. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
126. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.
127. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
128. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

ELEVENTH CAUSE OF ACTION**Negligent Hiring, Retention and Supervision Under
New York State Law**

129. The above paragraphs are here incorporated by reference as though fully set forth.
130. Defendant City owed a duty of care to Plaintiff to adequately hire, retain and supervise its employee defendants.
131. Defendant City breached that duty of care.
132. Defendant City placed defendants in a position where they could inflict foreseeable harm.
133. Defendant City knew or should have known of its employee defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiff.
134. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee defendants that would have prevented the aforesaid injuries to Plaintiff.
135. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
136. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

TWELFTH CAUSE OF ACTION**Municipal "*Monell*" Liability Under
42 U.S.C. § 1983 Against Defendant City**

137. The above paragraphs are here incorporated by reference as though fully set forth.
138. Defendant City maintained a policy, custom or practice that caused Plaintiff to be deprived of his Constitutional right to free from illegal searches and seizures.
139. Defendant City's illegal practice is so consistent and widespread that it constitutes a custom or usage of which a supervising policy maker must have been aware of.

140. Defendant City's policymakers failed to provide adequate training or supervision to subordinates to such an extent that it amounts to deliberate indifference to the rights of those who come into contact with Defendant City's employees.
141. Defendant City's conduct violated Plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution.
142. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.
143. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
 - m) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
 - n) Awarding Plaintiff reasonable attorneys' fees and costs pursuant to 28 U.S.C. § 1988;
- Together with the costs and disbursements of this action

Dated: Bayside, New York
June 10, 2019

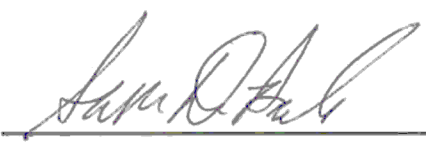


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ATTORNEY VERIFICATION

I, **Samuel C. DePaola**, an attorney admitted to practice in the courts of New York State, state that I am a partner of the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
June 10, 2019



SAMUEL C. DEPAOLA, ESQ.

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

FELIX OLIVO,

Plaintiff,

-against-

CITY OF NEW YORK, individually and in their official capacities as New York City police officers, FABIAN NEMBHARD, HECTOR LOPEZ and JOHN or JANE DOE 1-10,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: Samuel C. DePaola
Attorney for Plaintiff(s)
42-40 Bell Boulevard, Ste. 201
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for